

Attraction and Expansion Loan Program Rating Sheet: Tuscano's Pizza & Pasta

CRITERIA	POINTS POSSIBLE	POINTS RECEIVED
FULFILL A NEED WITHIN THE COMMUNITY	10	10
GENERATE INCREASED SALES TAX REVENUE	5	5
CREATE OPPORTUNITIES FOR RECRUITING NEW BUSINESSES TO FILL COMMERCIAL VACANCIES	10	0
CREATE OPPORTUNITIES FOR BUSINESS EXPANSION FOR EXISTING BEAUMONT BUSINESSES; OR	10	10
ENCOURAGE ADDITIONAL FOOT TRAFFIC AND SOCIAL ACTIVITY WITHIN THE PROPOSED BUSINESS LOCATION	10	10
DIVERSIFY THE CITY'S SALES TAX BASE	10	10
THE RISK DETERMINATION ANALYSIS	5	5
TOTAL:	60	50

Reviewer Name: Joseph Cole

Reviewer Signature: [Signature] Date: 6/24/2026

By signing below, I certify that I have reviewed the Attraction and Expansion Loan Program rating sheet and concur with the provided rating:

City Manager: [Signature] Date: 7/2/26

Community Development Director: [Signature] Date: 6/29/26

Economic Development Manager: [Signature] Date: 24 June 2026

Finance Director: [Signature] Date: 6/25/26

**CITY OF BEAUMONT
DOWNTOWN BUSINESS ATTRACTION AND EXPANSION PROGRAM
FORGIVABLE LOAN AGREEMENT**

This DOWNTOWN BUSINESS ATTRACTION AND EXPANSION PROGRAM FORGIVABLE LOAN AGREEMENT ("Agreement") is entered into upon signature ("Effective Date"), by and between the City of Beaumont ("City"), a municipal corporation, and 4 Star Solar Inc., a California Corporation located at 762 Beaumont Avenue, Beaumont, CA 92223 ("Borrower"). City and Borrower are at times individually referred to as "Party" and collectively as "Parties" herein.

RECITALS

WHEREAS, Borrower owns and operates 4 Star Solar Inc. located in the City ("the Business"); and

WHEREAS, Borrower requested a forgivable loan from the City through the DOWNTOWN BUSINESS ATTRACTION AND EXPANSION PROGRAM ("Program") by submitting DOWNTOWN BUSINESS ATTRACTION AND EXPANSION PROGRAM APPLICATION ("Application"), which Program and Application are attached hereto as Exhibit A and Exhibit "B" and incorporated herein by this reference; and

WHEREAS, Borrower represents that Borrower's Business and participation in the Program, complies with all applicable federal laws, regulations and executive orders and Borrower shall comply with all such including payment of state, local and federal taxes at all times during the term of this Agreement; and

WHEREAS, City intends to provide, and Borrower intends to receive, a loan subject to all terms and conditions set forth in the Program and this Agreement.

AGREEMENT

NOW, THEREFORE, based on the forgoing Recitals which are hereby incorporated herein by this reference the Parties agree as follows:

1. LOAN

1.1. Subject to the conditions set forth herein, City agrees to extend a forgivable loan to Borrower in the amount of Fifty Thousand Dollars and Zero Cents (\$50,000) ("Loan"). Funds to be distributed pursuant to the Loan shall be referred to herein as "Loan Funds."

1.2. Loan Funds shall be disbursed by City to Borrower in accordance with the Program.

2. TERMS OF THE LOAN

2.1. Interest Rate. The interest rate shall be equal to the average rate earned by the City's investment in the California Local Investment Fund (LAIF) (LAIF's Annual Returns: ..

2.2. Repayment of Loan. Unless the Loan is subject to forbearance or otherwise forgiven in accordance with the conditions set forth in **Section 2.5** hereof, Borrower shall repay all un-forgiven principal of the Loan in four equal quarter-annual installments.

2.3. Prepayment. Borrower shall have the right to prepay all or any portion of the Loan outstanding at any time without penalty.

2.4. Security. Borrower shall execute a Promissory Note in favor of the City to evidence its obligations with respect to the Loan. The Promissory Note shall be in substantially the form as set forth in **Exhibit C** hereto. The Loan shall be secured by a personal Guaranty of the Note by the principals of the Business in substantially the form as set forth in **Exhibit D** attached hereto.

2.5. Loan Forgiveness. City agrees to forbear collection of the Loan so long as the Borrower is in compliance with this Agreement and the Program Guidelines. City and Borrower agree that the Loan shall be forgiven if Borrower complies with Program requirements and continuously operates the Business for:

- Three (3) years from the date of this Agreement for loans up to \$25,000
- Five (5) years from the date of this Agreement for loans of \$50,000

3. RESTRICTIONS ON USE OF FUNDS

3.1. The Loan Funds are subject to the following expenditure conditions (“Approved Uses”):

3.1.1. The Loan Funds shall be expended solely for the purposes provided in this Agreement, including the Program, and must be expended during the period identified in the Program.

3.1.2. Loan Funds may be used for working capital interior or exterior leasehold improvements or business equipment, furniture, and fixtures. (each hereinafter an “Eligible Expense”); Borrower is responsible to determine whether any expenditures are subject to prevailing wages under Labor Code Section 1720 and shall indemnify, defend and hold harmless from any claims, expenses or judgements resulting from actual or alleged violations of such laws.

3.1.3. The Loan Funds shall not be used for any activity that would violate City, state or federal statutory or decisional law; and

3.2. Borrower further agrees that the Loan Funds will be spent solely for the Approved Uses and that the Loan Funds must be used by Borrower within 183 days of the date of this Agreement otherwise, the Loan Funds shall be returned to City, as provided in **Section 3.4** below.

3.3. If the City determines Loan Funds have been used for an ineligible expense, as determined in the sole discretion of the City, the Borrower shall repay such amount within ten (10) days of the City notifying the Borrower that the expenses are ineligible.

3.4. The City may inspect Borrower’s business and such financial records as may be necessary, in City’s judgment, to ensure eligibility prior to release of any funds pursuant to this Agreement.

3.5. Upon 72 hours’ notice, Borrower will allow the City to inspect Borrower’s business and such financial and other records as may be necessary, in City’s judgment, to verify that Loan Funds are being used in accordance with this Agreement and the Program requirements.

4. REPORTING AND ACCOUNTING REQUIREMENTS

4.1. At all times during the term of this Agreement, Borrower shall maintain true, proper, and complete books, records, and accounts (collectively, "Books and Records") in which shall be entered fully and accurately all transactions taken with respect to the expenditure of the Loan Funds. Borrower shall make available to City copies of such Books and Records within ten (10) calendar days of the City's request.

4.2. Borrower will be responsible for providing documentation, including receipts, to the City that accounts for how the entirety of the Loan Funds received were used to fund Eligible Expenses according to the timelines specified in the Program. Borrower shall provide any additional information or documentation related to the expenditures requested by the City within ten (10) calendar days of City's request.

4.3. City reserves the right to designate its own employee representative(s) or its contracted representative(s) with a Certified Public Accounting firm who shall have the right to audit Borrower's accounting procedures and internal controls of Borrower's financial systems as they relate to the Application and use of Loan Funds and to examine any cost, revenue, payment, claim, other records or supporting documentation resulting from any items set forth in this Agreement. Any such audit(s) shall be undertaken by City or its representative(s) at mutually agreed upon reasonable times and in conformance with generally accepted auditing standards. Borrower agrees to fully cooperate with any such audit(s).

4.4. Borrower agrees to exercise prudent financial management processes including proper oversight of all assets, budget preparation, and timely reporting including budget-to-actual-comparisons.

4.5. In the event Borrower does not make the above-referenced records available within the City of Beaumont, California, Borrower shall pay all necessary and reasonable expenses incurred by City in conducting any audit at the location where said records and books of account are maintained.

5. USE OF LOAN FUNDS

The Loan Funds shall be used solely by Borrower for the Approved Uses and for no other use.

6. INDEMNIFICATION

6.1. To the fullest extent permitted by law, Borrower shall indemnify, defend and hold harmless City, its City Council, boards and commissions, officers, agents, volunteers, and employees from and against any and all claims (including, without limitation, claims for bodily injury, death or damage to property), demands, obligations, damages, actions, causes of action, suits, losses, judgments, fines, penalties, liabilities, costs and expenses (including, without limitation, attorneys' fees, disbursements and court costs) of every kind and nature whatsoever, which may arise from or in any manner relate (directly or indirectly) to misrepresentations by Borrower, the expenditure of Loan Funds, the Application, or the Agreement, including the negligent and/or willful acts, errors and/or omissions of the Borrower, its principals, officers, agents, employees, vendors, suppliers, consultants, subcontractors, and anyone employed directly or indirectly by any of them or for whose acts they may be liable or any or all of them. The provisions of this paragraph shall survive the termination of this Agreement.

6.2. This indemnity shall apply to all claims and liability regardless of whether any insurance policies are applicable. Any policy limits do not act as a limitation upon the amount of indemnification to be provided by Borrower.

7. BORROWER INDEPENDENCE

In the performance of this Agreement, Borrower, and the agents and employees of Borrower, shall act in an independent capacity and are not officers, employees or agents of the City. The manner and means of performing the Approved Uses are under the control of Borrower, except to the extent they are limited by statute, rule or regulation and the expressed terms of this Agreement. Nothing in this Agreement shall be deemed to constitute approval for Borrower or any of Borrower's employees or agents, to be the agents or employees of City. Anything in this Agreement that may appear to give City the right to direct Borrower as to the details of the performance or to exercise a measure of control over Borrower shall mean only that Borrower shall follow the desires of City with respect to the restrictions of the Approved Uses.

8. PROHIBITION AGAINST TRANSFERS

Borrower shall not assign, sublease, hypothecate or transfer this Agreement or any of the obligations to be performed under this Agreement, directly or indirectly, by operation of law or otherwise without prior written consent of City. Any attempt to do so without written consent of City shall be null and void.

9. NOTICES

9.1. All notices, demands, requests or approvals to be given under this Agreement shall be given in writing and conclusively shall be deemed served when delivered personally or on the third business day after the deposit thereof in the United States mail, postage prepaid, first class mail, addressed as hereinafter provided

9.2. All notices, demands, requests or approvals from Borrower to City shall be addressed to the City at:

Attn: City Manager
City of Beaumont
550 w. Sixth Street
Beaumont, CA 92223

9.3. All notices, demands, requests or approvals from City to Borrower shall be addressed to Borrower at:

Attn: VICTOR BARBERA
1815 FLANK CT
REDLANDS, CA 92374

10. TERMINATION

10.1. Termination by City. The City may terminate this Agreement if it determines that the Borrower has made any misrepresentations that relate in any way to the Application or expenditure of Loan Funds by providing Borrower with three (3) calendar days' notice of termination, in writing. In the event of termination, Borrower shall return any unexpended Loan Funds within ten (10) business days. Termination of this Agreement shall not relieve Borrower of any liability to expend Loan

Funds on only Approved Uses, to provide receipts or documentation thereof to City, or otherwise to comply with the substantive terms of this Agreement.

10.2. Specific Performance. Borrower agrees that the City has the legal right, and all necessary conditions have been satisfied, to specifically enforce Borrower's obligations pursuant to this Agreement.

11. STANDARD PROVISIONS

11.1. Recitals. City and Borrower acknowledge that the above Recitals are true and correct and are hereby incorporated by reference into this Agreement.

11.2. Compliance With all Laws. Borrower shall at its own cost and expense comply with all statutes, ordinances, regulations and requirements of all governmental entities, including federal, state, county or municipal, whether now in force or hereinafter enacted and comply with all state and county guidance for re-opening.

11.3. Waiver. A waiver by either Party of any breach, term, covenant or condition contained herein shall not be deemed to be a waiver of any subsequent breach of the same or any other term, covenant or condition contained herein, whether of the same or a different character.

11.4. Integrated Contract. This Agreement represents the full and complete understanding of every kind or nature whatsoever between the parties hereto, and all preliminary negotiations and agreements of whatsoever kind or nature are merged herein. No verbal agreement or implied covenant shall be held to vary the provisions herein.

11.5. Conflicts or Inconsistencies. In the event there are any conflicts or inconsistencies between this Agreement and the Application, or any other attachments attached hereto, the terms of this Agreement shall govern.

11.6. Interpretation. The terms of this Agreement shall be construed in accordance with the meaning of the language used and shall not be construed for or against either party by reason of the authorship of the Agreement or any other rule of construction which might otherwise apply.

11.7. Amendments. This Agreement may be modified or amended only by a written document executed by both Borrower and City and approved as to form by the City Attorney.

11.8. Severability. If any term or portion of this Agreement is held to be invalid, illegal, or otherwise unenforceable by a court of competent jurisdiction, the remaining provisions of this Agreement shall continue in full force and effect.

11.9. Controlling Law And Venue. The laws of the State of California shall govern this Agreement and all matters relating to it and any action brought relating to this Agreement shall be adjudicated in a court of competent jurisdiction in the County of Riverside, State of California.

11.10. Equal Opportunity Employment. Borrower represents that it is an equal opportunity employer and it shall not discriminate against any contractor, employee or applicant for employment because of race, religion, color, national origin, handicap, ancestry, sex or age or any other impermissible basis under law.

11.11. No Attorneys' Fees. In the event of any dispute or legal action arising under this Agreement, the prevailing party shall not be entitled to attorney's fees.

11.12. Taxes. The City and Borrower expressly agree that the Borrower shall be responsible for all taxes that are associated in any way with the receipt and expenditure of the Loan Funds. City makes no representations whatsoever as to the tax consequences, if any, of Borrower's acceptance of Loan Funds.

11.13. Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed on the dates written below.

APPROVED AS TO FORM:

CITY ATTORNEY

Date: _____

CITY OF BEAUMONT, a California general law city

Date: _____

ATTEST:

By: _____
City Clerk

BORROWER:

Vicente Bazzosa

Name

PRESIDENT

Officer Title

Exhibit A: Borrower's Application



BEAUMONT ECONOMIC
DEVELOPMENT DEPT.

550 E 6TH STREET, BEAUMONT, CA
92223
PHONE (951) 769-8527
BEAUMONTCA.GOV

Business Attraction and Expansion Program

Application Form

DATE OF REGISTRATION

11 / 07 / 25

APPLICANT INFORMATION

Full Name :

4 STAR SOLAR INC.

Applicant
Address :

1815 FRANK CT.

City, State, Zip:

REDLANDS, CA 92374

Email :

VICBARBOBA@HOTMAIL.COM

Phone
Number:

909-215-7351

Applicant's Interest in Property :

☐

Own

☒

Rent

☐

Other:

Name of Business :

TUSCANO'S

PROPERTY OWNER INFORMATION

Full Name :

THOMAS DANIEL

Property Owner
Address :

33572 SEA POINT DR.

City, State, Zip :

DANA POINT, CA 92629

Email :

CONCRETE1@ROADRUNNER.COM

Phone
Number:

951-316-7019

BUSINESS ELIGIBILITY

Is this a New or Existing Business?

☐

New Business

☒

Existing Business

If Existing Business is selected, please provide the following :

Current Building Square Footage and/or Occupant Load :

Proposed New Square Footage and/or Occupant Load :

Econdev@beaumontca.gov



BEAUMONT ECONOMIC
DEVELOPMENT DEPT.

550 E 6TH STREET, BEAUMONT, CA
92223
PHONE (951) 769-8527
BEAUMONTCA.GOV

Business Attraction and Expansion Program

Application Form

If New Business is selected, please indicate the category of the proposed business :

- Definitions of each category are detailed in the Program's Policy.

☐

Premium Casual Restaurants

☐

Sit Down Fine Dining Restaurants

☐

Bars and Cocktail Lounges

☐

Breweries, Distilleries, and Small Scale Alcohol Production

☐

Entertainment Uses

PROPERTY INFORMATION

Property Address or location :

762 BEAUMONT AVE BEAUMONT, CA 92223

Assessor's Parcel Number :

Total Site Acreage :

Building Square Footage :

PROJECT DESCRIPTION

General Description of Business and Proposed improvements :

WE ARE PROPOSING TO ADD

ROUGHLY 1,000 SQUARE FEET OF OUTDOOR PATIO SPACE TO OUR RESTAURANT
IN THE CITY OF BEAUMONT. THE GOAL OF THIS EXPANSION IS TO PROVIDE
ADDITIONAL SEATING FOR OUR GUESTS AND CREATE A COMFORTABLE,
FAMILY FRIENDLY SPACE WHERE LOCAL SPORTS TEAMS, FAMILIES,



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Business Attraction and Incentive Program Application Form

AND COMMUNITY GROUPS CAN GATHER. THIS ADDITION WILL ALLOW
US TO BETTER SERVE THE BEAUMONT COMMUNITY BY KEEPING
TEAM PARTIES AND GROUP EVENTS LOCAL, RATHER THAN DIRECTING
THEM TO OUR YUCAITA LOCATION.

Requested Loan Amount:

\$50,000

NOTIFICATIONS

1. Electronic submittal of applications is allowed.
2. Appointments are required for in-person submittal. Contact the Economic Development Department at (951) 769-8527 for scheduling.
3. Acceptance of the application at the counter does not represent a complete application or guarantee funding.

ACKNOWLEDGEMENTS

☒ I understand that this funding request is for a forgivable loan, and repayment with interest will be required in the event my business ceases prior to the required loan term.

☒ I hereby acknowledge and understand that Collateral, when available in any form, may be requested by the City of Beaumont

☒ I hereby acknowledge that I will obtain plan approval and any applicable Planning and Building Permits from the City of Beaumont and will comply with all city policies and ordinances including business permit requirements.

☒ I agree that I shall provide any and all items required in Section VIII "Risk Assessment" upon request of the City of Beaumont



BEAUMONT ECONOMIC
DEVELOPMENT DEPT.

550 E 6TH STREET, BEAUMONT, CA
92223
PHONE (951) 769-8527
BEAUMONTCA.GOV

Business Attraction and Expansion Program

Application Form

AUTHORIZATIONS

VB
Please initial here

I hereby acknowledge that I have read, understand, and if I am awarded funding under this program, will comply with all the requirements of the Business Incentive Loan Policy.

Print Applicant Name :

VICTOR BARBOSA PRESIDENT

Applicant Signature :

[Signature] PRESIDENT

Date :

11/13/25

Print Property Owner Name :

~~ANDREW BARBOSA~~ THOMAS DANIEL DANIEL COURNGER

Property Owner Signature :

[Signature]

Date :

11-13-25